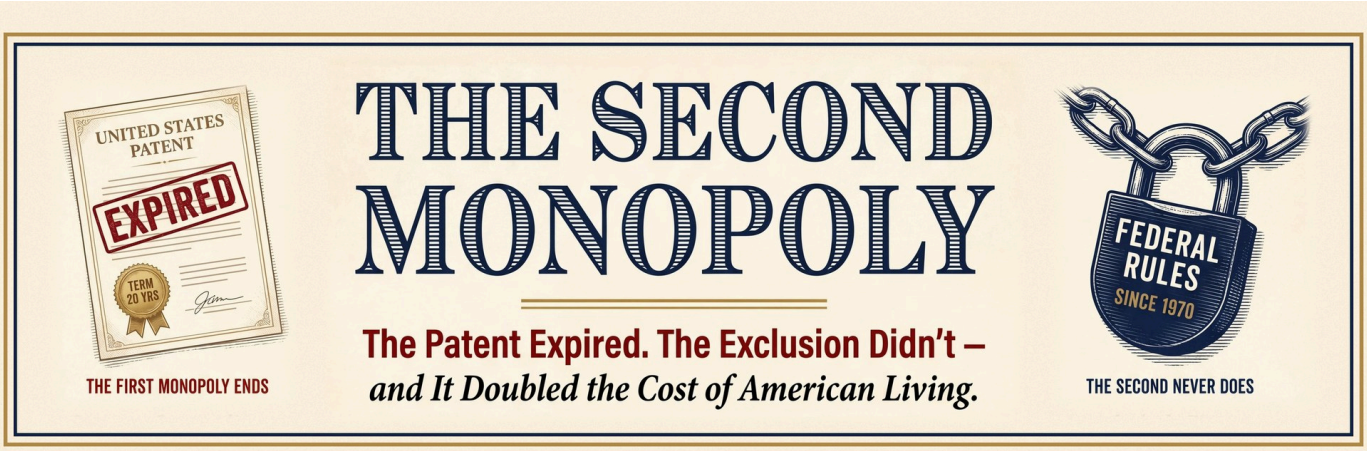


CHAPTER 28

Reason the Constitutional Argument Yourself: The Open-Book Examination

The Second Monopoly

The Patent Expired. The Exclusion Didn't — and It Doubled the Cost of American Living.

(formerly titled The Forgotten Half of the Patent Clause)

A constitutional-law litigation strategy and a citizen's playbook — in one book.

by **Roleigh Martin**

One chapter of the book, reproduced in full — an open invitation to test the argument yourself, and to attorneys (or those who know one) to weigh whether it merits a hearing.

The chapter below, *Reason the Constitutional Argument Yourself: The Open-Book Examination*, is built for the skeptical reader. It hands you the primary materials — the Supreme Court holdings, the regulatory facts, the statutory and regulatory authority, and both advocates' cases — and invites you to put the constitutional question to an artificial-intelligence language model and judge the reasoning for yourself. At its close, and continuing into the section that was Appendix C in the printed book, it reproduces the full, unedited replies of eleven AI models, each tested separately. They decide nothing — only a court can — and

because such systems share training data they are not eleven independent verifications; the convergence is one part of a record you are invited to weigh for yourself.

Sources and endnotes for this chapter

Every authority named in this chapter is documented in the book's full back-matter apparatus: **Endnotes, Glossary & Key Terms** — every citation with a live source link.

One caution so it is not a surprise. That page is *not* a per-chapter note list. It is the complete apparatus for the entire book, alphabetical by author, organization, or case name, and it runs to several hundred entries.

To find a particular source, open the page and use your browser's find command — **Ctrl**-**F** on Windows, **Command**-**F** on a Mac — then search for the author, case, or work by name.

A note for attorneys — and for readers who know one

This constitutional argument is being prepared for federal court. As the book moves toward publishers, one question recurs: whether a non-lawyer can be trusted to handle the argument responsibly. A few words from a practicing attorney would answer that better than anything the author could say.

If you are a lawyer and, after reviewing the materials, you consider the work well-researched and deserving of serious consideration and a public hearing, the author welcomes a brief statement to that effect — in your own words, implying no agreement with the book's conclusions. And if you simply know an attorney for whom this argument is suited, passing it along would be a real help.

Any attorney who reaches out can receive the complete Author's Review manuscript for their review — as a PDF, as a printed trade paperback (available at cost, including shipping), or as an EPUB — whichever suits

how you prefer to read. The chapter below is the efficient place to start; the full manuscript is there for whoever wishes to go deeper.

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CHAPTER 28

Reason the Constitutional Argument Yourself: The Open-Book Examination

A reader who has come this far is entitled to a fair question: how do I know the argument in these pages is sound, and not merely well built? The chapters have laid out the holdings, the statutes, and the asymmetry between the two halves of the patent term. Lawyers are reviewing the manuscript. But the reader need not wait for the lawyers, and need not take the author's word. The reader can test the argument directly.

The instrument for that test is now widely available, and being plain about what it is matters. A modern artificial-intelligence language model is, for practical purposes, something like a gifted graduate assistant — a fast study with a wide command of material and a strong instinct for logical consequence, though no judgment a court would defer to. The exercise in this chapter does to such a model what a professor does to a graduate student on the first day. It sends it back to school. It hands the model the syllabus — the Supreme Court holdings, the relevant constitutional text, and the governing federal statutes and regulations — together with plain diagrams showing what this book sees in that material. Then it asks the model to reason.

The point is not that a machine's agreement proves anything. A model is not a court. Its answers vary between systems, between versions, and between runs, and they can be wrong. The point is narrower and more interesting. If a range of

these systems — built by different companies, trained on different data, carrying different dispositions — are handed the same neutral materials and asked to reason from them, do they converge? Or do they diverge? A leading question put to a single agreeable model proves nothing. The same neutral question, put to many independent ones, is a different kind of evidence: not proof, but a test of whether the conclusion follows from the authorities, or only from the way the author tells the story.

How the Examination Is Built

The examination is built like a trial, in three parts. First comes **the law** — the relevant Supreme Court holdings, the constitutional text, and the governing federal statutes and regulations, given whole, the cases that cut against this argument set beside the cases that favor it. Then come **the two advocates** — a case for restoring the public's right and a defense of the present system, each given equal space. Last comes **the verdict** — the reasoning of the artificial intelligence, after it holds the full law and has heard both sides.

One question this examination does not ask is who may bring such a case to court. That is the separate matter of standing and timing, taken up in *Sovereign and Public-Fiduciary Plaintiffs*, *Direct and Associational Plaintiff Categories*, and *The Filable Case: Why 2026 and Not Before*. This chapter tests the merits — whether the law permits the regulatory bar — not the procedure for raising the question. A juror weighing the merits need not know who the plaintiff is.

What follows is in two parts. Part One is the examination itself — the law, the two advocates, and the diagrams — written to be read by the AI, and available free of charge online at marti124.github.io/Patent_Exam. Part Two is for you: how to run the examination, the prompts to give the AI, and the sheet on which to score what it answers.

A note before the materials. Little in Part One is new to a reader who has come this far. The holdings below are the same cases walked in *The Patent Clause Prong* and *The Takings Clause Prong* — *Graham*'s grant-and-limitation, *Singer*'s public property, *Scott Paper*'s dedication to public use — stripped here to their

operative language, the way a court would receive them, with the cases that cut against this book set beside the ones that favor it. You may read Part One as a review, skim it as a checklist, or skip directly to Part Two and let the machines do the reading. The materials are for them.

PART ONE — The Examination Materials (for the AI to read)

Everything in this part is the material the AI reads. It is published free of charge online at marti124.github.io/Patent_Exam, where it downloads under the filename The_Forgotten_Half_of_the_Patent_Clause_Exam.pdf. To run the examination, give the AI that PDF and then one of the prompts from Part Two. Nothing in this part tells the AI what to conclude.

Reasoning instruction: "You are given a set of legal materials and the arguments of two advocates. Reason from the materials provided. You may reason by analogy, extending the principles underlying these holdings to the facts presented; when you do, distinguish clearly between what a case holds and what you infer by extension. Be rigorous and concise."

The Supreme Court holdings

1. Patterson v. Kentucky, 97 U.S. 501 (1878) — A patent does not exempt the patented article from generally applicable state safety regulation. Source: https://supreme.justia.com/cases/federal/us/97/501/

Operative language: *The patent right "is not granted or secured without reference to the general powers which the several states of the Union unquestionably possess over their purely domestic affairs, whether of internal commerce or of police."*

2. Webber v. Virginia, 103 U.S. 344 (1880) — A patent confers the right to make and sell the invention, but does not place the article beyond the reach of general police-power regulation. Source: https://supreme.justia.com/cases/federal/us/103/344/

Operative language: *"Letters patent granted by the United States do not exclude … the tangible property in which the invention or discovery is embodied" from a State's tax or license law.*

3. James v. Campbell, 104 U.S. 356 (1882) — A patent is private property; the federal government's use of a patented invention is a taking for which the owner must be compensated. Source: https://supreme.justia.com/cases/federal/us/104/356/

Operative language: *A patent "confers upon the patentee an exclusive property in the patented invention which cannot be appropriated or used by the government itself, without just compensation, any more than it can appropriate or use without compensation land which has been patented to a private purchaser."*

4. Singer Manufacturing Co. v. June Manufacturing Co., 163 U.S. 169 (1896) — When the patents on a machine expire, its form becomes public property, free for anyone to make. Source: https://supreme.justia.com/cases/federal/us/163/169/

Operative language: *"[T]he right to make the thing formerly covered by the patent becomes public property"; "there passes to the public the right to make the machine in the form in which it was constructed during the patent." Along with the device, the generic name also "pass[es] to the public," subject only to the maker's duty to identify its own source. (163 U.S. at 185.)*

5. McCormick Harvesting Machine Co. v. Aultman, 169 U.S. 606 (1898) — Once a patent issues it is the property of the patentee; only a court, not the granting agency, may set it aside. Source: https://supreme.justia.com/cases/federal/us/169/606/

Operative language: *A patent, once issued, "is not subject to be revoked or canceled by the president, or any other officer of the government. ... It has become the property of the patentee, and as such is entitled to the same legal protection as other property."*

6. Pennsylvania Coal Co. v. Mahon, 260 U.S. 393 (1922) — A regulation that diminishes property value too far may constitute a taking. Source: https://supreme.justia.com/cases/federal/us/260/393/

Operative language: *"The general rule at least is that while property may be regulated to a certain extent, if regulation goes too far it will be recognized as a taking."*

7. Scott Paper Co. v. Marcalus Manufacturing Co., 326 U.S. 249 (1945) — The patent laws dedicate to public use the invention of an expired patent; no one may withhold that invention from public use. Source: https://supreme.justia.com/cases/federal/us/326/249/

Operative language: *The patent laws "dedicate to public use the invention of an expired patent," and do not contemplate that anyone may "withhold from the public the use of the invention of an expired patent."*

8. Bolling v. Sharpe, 347 U.S. 497 (1954) — The Fifth Amendment's Due Process Clause imposes on the federal government an equal-protection obligation comparable to that the Fourteenth Amendment imposes on the states; federal action that draws unjustified distinctions between similarly situated persons is unconstitutional. Source: https://supreme.justia.com/cases/federal/us/347/497/

Operative language: *"The concepts of equal protection and due process … are not mutually exclusive. … [D]iscrimination may be so unjustifiable as to be violative of due process." It would be "unthinkable that the same Constitution would impose a lesser duty on the Federal Government."*

9. Williamson v. Lee Optical of Oklahoma, Inc., 348 U.S. 483 (1955) — Economic regulation is upheld under rational-basis review if it is rationally related to a legitimate government interest. Source: https://supreme.justia.com/cases/federal/us/348/483/

Operative language: *"[T]he law need not be in every respect logically consistent with its aims to be constitutional. It is enough that there is an evil at hand for correction, and that it might be thought that the particular legislative measure was a rational way to correct it."*

10. Sears, Roebuck & Co. v. Stiffel Co., 376 U.S. 225 (1964) — An article whose patent has expired is in the public domain and may be made and sold by anyone. Source: https://supreme.justia.com/cases/federal/us/376/225/

Operative language: *An article on which the patent has expired "may be made and sold by whoever chooses to do so."*

11. Graham v. John Deere Co., 383 U.S. 1 (1966) — The Patent Clause is both a grant of power and a limitation on it; Congress, in exercising the patent power, may not overreach the restraints imposed by the clause's stated purpose. Source: https://supreme.justia.com/cases/federal/us/383/1/

Operative language: *The Patent Clause "is both a grant of power and a limitation," and "Congress in the exercise of the patent power may not overreach the restraints imposed by the stated constitutional purpose."*

12. United States Department of Agriculture v. Moreno, 413 U.S. 528 (1973) — A classification fails rational-basis review where the only rationale for it is a bare desire to harm a disfavored group. Source: https://supreme.justia.com/cases/federal/us/413/528/

Operative language: *"[I]f the constitutional conception of 'equal protection of the laws' means anything, it must at the very least mean that a bare congressional desire to harm a politically unpopular group cannot constitute a legitimate governmental interest."*

13. Penn Central Transportation Co. v. New York City, 438 U.S. 104 (1978) — Whether a regulation is a taking is judged by weighing its economic impact, its interference with investment-backed expectations, and the character of the government action. Source: https://supreme.justia.com/cases/federal/us/438/104/

Operative language: *Relevant factors are "[t]he economic impact of the regulation on the claimant and, particularly, the extent to which the regulation has interfered with distinct investment-backed expectations ... So, too, is the character of the governmental action."*

14. Andrus v. Allard, 444 U.S. 51 (1979) — A federal ban on the commercial sale of lawfully held property is not necessarily a taking where other uses of the property remain. Source: https://supreme.justia.com/cases/federal/us/444/51/

Operative language: *"[W]here an owner possesses a full 'bundle' of property rights, the destruction of one 'strand' of the bundle is not a taking, because the aggregate must be viewed in its entirety."*

15. Aronson v. Quick Point Pencil Co., 440 U.S. 257 (1979) — Federal patent law does not displace ordinary state law governing a product; a contract or other general legal obligation tied to an invention remains enforceable whether or not the invention is patented. Source: https://supreme.justia.com/cases/federal/us/440/257/

Operative language: *"Commercial agreements traditionally are the domain of state law. State law is not displaced merely because the contract relates to intellectual property which may or may not be patentable."*

16. Loretto v. Teleprompter Manhattan CATV Corp., 458 U.S. 419 (1982) — A permanent physical occupation of property is a per se taking. Source: https://supreme.justia.com/cases/federal/us/458/419/

Operative language: *"[A] permanent physical occupation of property is a taking."*

17. Ruckelshaus v. Monsanto Co., 467 U.S. 986 (1984) — Intangible property, such as a trade secret, is protected property under the Takings Clause. Source: https://supreme.justia.com/cases/federal/us/467/986/

Operative language: *"[T]o the extent that Monsanto has an interest in its health, safety, and environmental data cognizable as a trade-secret property right under … law, that property right is protected by the Taking Clause of the Fifth Amendment."*

18. City of Cleburne v. Cleburne Living Center, 473 U.S. 432 (1985) — A classification fails rational-basis review where it rests only on irrational prejudice against a disfavored group. Source: https://supreme.justia.com/cases/federal/us/473/432/

Operative language: *"[M]ere negative attitudes, or fear … are not permissible bases" for unequal treatment; the permit denial rested on "an irrational prejudice."*

19. First English Evangelical Lutheran Church v. County of Los Angeles, 482 U.S. 304 (1987) — The Takings Clause does not forbid the government from taking

property; it requires compensation when a taking occurs. Source: https://supreme.justia.com/cases/federal/us/482/304/

Operative language: *The Takings Clause "does not prohibit the taking of private property, but instead places a condition on the exercise of that power" — the payment of just compensation.*

20. Bonito Boats, Inc. v. Thunder Craft Boats, Inc., 489 U.S. 141 (1989) — Federal patent law leaves unpatented and patent-expired designs free for the public to copy; a government may not pull them back out of the public domain. Source: https://supreme.justia.com/cases/federal/us/489/141/

Operative language: *"[F]ree exploitation of ideas will be the rule, to which the protection of a federal patent is the exception." Federal law leaves patent-expired designs free for the public to copy.*

21. Lucas v. South Carolina Coastal Council, 505 U.S. 1003 (1992) — A regulation that denies an owner all economically beneficial use of property is a per se taking. Source: https://supreme.justia.com/cases/federal/us/505/1003/

Operative language: *When an owner is "called upon to sacrifice all economically beneficial uses in the name of the common good, that is, to leave his property economically idle, he has suffered a taking."*

22. Adarand Constructors, Inc. v. Peña, 515 U.S. 200 (1995) — The Fifth Amendment imposes on the federal government an equal-protection requirement equivalent to the one the Fourteenth Amendment imposes on the states. Source: https://supreme.justia.com/cases/federal/us/515/200/

Operative language: *"[T]he equal protection obligations imposed by the Fifth and the Fourteenth Amendments [are] indistinguishable," so that "the standards for federal and state racial classifications [are] the same."*

23. Romer v. Evans, 517 U.S. 620 (1996) — A classification fails even rational-basis review where it is explained only by animus toward those it disadvantages. Source: https://supreme.justia.com/cases/federal/us/517/620/

Operative language: *"[Amendment 2] classifies homosexuals not to further a proper legislative end but to make them unequal to everyone else"; the law is "inexplicable by anything but animus toward the class it affects."*

24. Florida Prepaid Postsecondary Education Expense Board v. College Savings Bank, 527 U.S. 627 (1999) — A patent is a form of property, protected as other property is. Source: https://supreme.justia.com/cases/federal/us/527/627/

Operative language: *"Patents … have long been considered a species of property."*

25. Eldred v. Ashcroft, 537 U.S. 186 (2003) — A copyright-term extension did not violate the "limited Times" prescription; Congress receives substantial deference in setting the duration of intellectual-property rights. Source: https://supreme.justia.com/cases/federal/us/537/186/

Operative language: *A "limited" timespan means "confined within certain bounds, restrained, or circumscribed," and "a timespan appropriately 'limited' as applied to future copyrights does not automatically cease to be 'limited' when applied to existing copyrights."*

26. Arkansas Game & Fish Commission v. United States, 568 U.S. 23 (2012) — Even temporary government-induced invasions of property may constitute takings. Source: https://supreme.justia.com/cases/federal/us/568/23/

Operative language: *"[G]overnment-induced flooding temporary in duration gains no automatic exemption from Takings Clause inspection."*

27. Horne v. Department of Agriculture, 576 U.S. 350 (2015) — The per se takings rule applies with full force to the appropriation of personal property. Source: https://supreme.justia.com/cases/federal/us/576/350/

Operative language: *"The Fifth Amendment requires that the Government pay just compensation when it takes personal property, just as when it takes real property."*

28. Kimble v. Marvel Entertainment, LLC, 576 U.S. 446 (2015) — When a patent expires, the right to make or use the article, free from all restriction, passes to the

public. Source: https://supreme.justia.com/cases/federal/us/576/446/

Operative language: *When a patent expires, "the right to make or use the article, free from all restriction, passes to the public."*

29. Cedar Point Nursery v. Hassid, 594 U.S. 139 (2021) — A regulation granting third parties a right of physical access to property, even for limited hours, is a per se physical taking. Source: https://supreme.justia.com/cases/federal/us/594/20-107/

Operative language: *The access regulation "appropriates a right to invade the growers' property and therefore constitutes a per se physical taking."*

30. Tyler v. Hennepin County, 598 U.S. 631 (2023) — The government cannot declare away a property interest that the law has historically recognized. Source: https://supreme.justia.com/cases/federal/us/598/22-166/

Operative language: *A government "may not sidestep the Takings Clause by disavowing traditional property interests."*

31. Sheetz v. County of El Dorado, 601 U.S. 267 (2024) — A permit condition imposed by general legislation is still subject to takings scrutiny. Source: https://supreme.justia.com/cases/federal/us/601/22-1074/

Operative language: *"The Takings Clause does not distinguish between legislative and administrative permit conditions."*

The regulatory facts

1. Federal energy and safety standards (administered by agencies including the EPA, NHTSA, and DOE) apply to a product according to the date it was manufactured. A product lawfully built to the standards in force in its year of manufacture remains lawful to own, use, sell, and register for the remainder of its service life, even after later standards take effect. This is commonly called grandfathering. Source: https://www.ecfr.gov/current/title-49/subtitle-B/chapter-V/part-571

Operative language: *49 C.F.R. §571.5(a): "[E]ach standard set forth in subpart B of this part applies according to its terms to all motor vehicles or items of*

motor vehicle equipment the manufacture of which is completed on or after the effective date of the standard." 49 C.F.R. §567.4 (certification label): "This vehicle conforms to all applicable Federal motor vehicle safety standards in effect on the date of manufacture shown above."

2. These standards tighten over time and are not, in practice, relaxed; a standard once in force sets a floor that subsequent standards meet or exceed. (One such floor is codified at 42 U.S.C. 6295(o)(1).) Source: https://www.law.cornell.edu/uscode/text/42/6295

Operative language: *42 U.S.C. §6295(o)(1): "The Secretary may not prescribe any amended standard which increases the maximum allowable energy use … or decreases the minimum required energy efficiency, of a covered product."*

3. A newly manufactured product must meet the standards in force in its year of manufacture, not the standards of any earlier year. Source: https://www.law.cornell.edu/uscode/text/42/7521

Operative language: *42 U.S.C. §7521(a)(1): "Such standards shall be applicable to such vehicles and engines for their useful life … whether such vehicles and engines are designed as complete systems or incorporate devices to prevent or control such pollution."*

4. As a result, a product that reproduces a design whose patents have all expired — built new today from that expired design — must meet today's standards. Because the design was certified to the standards of an earlier year, the newly built reproduction does not meet today's standards and may not be manufactured for sale, even though an identical unit built when the design was current remains lawful to own and operate indefinitely under grandfathering.

5. Patent terms are fixed by statute and expire on schedule. The regulatory standards described above have no expiration date. Source: https://www.law.cornell.edu/uscode/text/35/154

Operative language: *35 U.S.C. §154(a)(2): "[S]uch grant shall be for a term beginning on the date on which the patent issues and ending 20 years from the date on which the application for the patent was filed in the United States."*

The statutory and regulatory authority

A. Authority for the standards.

1. Clean Air Act, Pub. L. No. 91-604 (1970), as amended 1977 and 1990; codified at 42 U.S.C. 7401 et seq. Authorizes the EPA to set and enforce air-quality and motor-vehicle emissions standards. Source: https://www.law.cornell.edu/uscode/text/42/chapter-85

Operative language: *42 U.S.C. §7521(a)(1): "The Administrator shall by regulation prescribe (and from time to time revise) … standards applicable to the emission of any air pollutant from any class or classes of new motor vehicles or new motor vehicle engines … Such standards shall be applicable to such vehicles and engines for their useful life."*

2. Energy Policy and Conservation Act of 1975, Pub. L. No. 94-163; codified at scattered sections of 42 U.S.C. and 49 U.S.C., including the Corporate Average Fuel Economy program at 49 U.S.C. 32902. Source: https://www.ecfr.gov/current/title-10/chapter-II/subchapter-D

3. National Appliance Energy Conservation Act of 1987, Pub. L. No. 100-12, amending the Energy Policy and Conservation Act. Added the anti-backsliding provision at 42 U.S.C. 6295(o)(1), which provides that a federal energy-efficiency standard may be made more stringent over time but may not be made less stringent than the standard already in force. Source: https://www.govinfo.gov/app/details/GPO-CRECB-1987-pt3

4. Federal motor-vehicle safety authority: the Federal Motor Vehicle Safety Standards, administered by NHTSA and codified at 49 C.F.R. Part 571. A vehicle offered for sale new must comply with the standards in force for its model year. Source: https://www.federalregister.gov/documents/2024/05/09/2024-09462/federal-motor-vehicle-safety-standards-automatic-emergency-braking-systems-for-light-vehicles

5. The standards in (1)-(4) bind a product by its date or year of manufacture. A unit lawfully built to the standards in force when it was made remains lawful to own, use, and sell thereafter; a unit manufactured later must meet the standards in force at the later date.

6. The tightening is concrete. Under the Tier 1 standards (40 C.F.R. § 86.708-94, Table H94-4, full useful life; promulgated at 56 Fed. Reg. 25781, June 5, 1991), a gasoline passenger car met a full-useful-life NOx limit of 0.60 g/mi; light trucks were regulated on separate, weight-tiered limits set looser than the passenger-car standard. Under Tier 2 (40 C.F.R. § 86.1811-04; definitions at § 86.1803-01), cars and light trucks alike were brought to a single fleet-average NOx standard of 0.07 g/mi — for passenger cars, nearly a ninefold reduction — phased in from model year 2004 for cars and lighter trucks and from 2008 for the heaviest. Under Tier 3 (40 C.F.R. § 86.1811-17), both must meet a combined NMOG+NOx fleet average of 0.030 g/mi at full useful life — less than half the Tier 2 NOx figure, and now folding in the organic gases earlier tiers measured separately.

B. Doctrine bearing on the validity of such regulation.

6. Chevron U.S.A., Inc. v. Natural Resources Defense Council, Inc., 467 U.S. 837 (1984), as limited by Loper Bright Enterprises v. Raimondo, 603 U.S. 369 (2024) — Courts formerly deferred to an agency's reasonable reading of an ambiguous statute it administers; Loper Bright ended that deference, requiring courts to determine the best reading of the statute themselves. Source: https://supreme.justia.com/cases/federal/us/467/837/

Operative language: *Chevron (Stevens, J.): "[I]f the statute is silent or ambiguous with respect to the specific issue, the question for the court is whether the agency's answer is based on a permissible construction of the statute." Loper Bright (Roberts, C.J.): "Chevron is overruled. Courts must exercise their independent judgment in deciding whether an agency has acted within its statutory authority … courts … may not defer to an agency interpretation of the law simply because a statute is ambiguous."*

7. West Virginia v. Environmental Protection Agency, 597 U.S. 697 (2022) — Under the major-questions doctrine, an agency asserting authority over a matter of vast economic and political significance must point to clear congressional authorization. Source: https://supreme.justia.com/cases/federal/us/597/20-1530/

Operative language: *Under the major-questions doctrine, given "the history and the breadth of the authority that the agency has asserted and the economic*

and political significance of that assertion," the agency must point to "clear congressional authorization."

The case for restoring the public's right

• The Constitution grants exclusive rights only for limited Times. When that time ends, the design enters the public domain — free for all to make, use, and improve. The Supreme Court has said so for over a century, from Singer and Scott Paper to Sears, Bonito Boats, and Kimble.

• The patent bargain has two halves. The inventor receives a temporary monopoly. In exchange, the public receives the invention when the term ends. The patent term does end on schedule. But the regulatory regime applies by manufacture date. The original article stays lawful under its platform-year standards. A faithful public-domain remake is treated as a current-year manufacture and held to standards the original never had to meet. The problem is not that regulation continues. The problem is that the public receives the invention on a different regulatory timeline than the patent holder enjoyed.

• A faithful remake of a patent-expired design is treated as a new current-year product. So it must meet today's standards, not the platform-year standards the original lawfully met and still carries through grandfathering. The remake is barred — not because the design was unlawful when certified, and not because the public seeks freedom from regulation, but because the compliance year has been shifted forward after the public's right finally vests. The effect is to preserve the original manufacturer's protection from low-cost remake competition with no terminus, defeating the public's half of the bargain.

• The bar operates through regulation, but its source of power cannot save it. An agency holds no power its creating Congress did not have. And Congress could not grant perpetual exclusivity over an expired design under any of its powers, because "limited Times" limits the result, not the route. When a specific constitutional provision and a general one bear on the same act, the specific governs: the commerce and spending powers are general, but "limited Times" speaks directly to exclusive rights in inventions, and a general power may not accomplish what a specific provision forbids. The label on the statute does not control; the effect does. A safety or energy rule that, in operation, extends an

inventor's exclusivity past the term the Patent Clause fixed is doing the patent power's forbidden work under another name. This conclusion is the argument's own inference from the structure of the enumerated powers; no single case holds it.

• The same federal architecture treats the same design differently by who occupies the timeline. The original article, built during the patent holder's period of exploitation, stays lawful indefinitely under its platform-year certification. The public's faithful remake — built only after expiration, because the public was forbidden to build earlier — is barred by current-year standards. That is the relevant inequality. It is not merely a date distinction of ordinary safety law. In the patent setting, the date distinction decides whether the public ever receives the invention the Constitution required to pass to it at expiration. Bolling v. Sharpe (1954) and Adarand Constructors v. Peña (1995) confirm the federal government is not exempt from equality principles. But the more specific equality here comes from the Patent Clause itself: the patentee's exclusive period and the public's post-expiration period must be treated on parity.

• The remedy is narrow. A faithful remake of a fully patent-expired design is held to the federal safety, emissions, and energy standards of its certified platform year — the same standards the original met, and under which the original remains lawful — while newly designed products remain fully subject to current standards. The standard is time-shifted, not removed. The remake must independently certify that it contains nothing still under patent, avoids protected marks and trade dress, and satisfies the platform-year rules. The patent ends on schedule. Only the public's long-promised right to build the expired design, on parity with the original timeline, is restored.

• The post-expiration commons is not theoretical. Remanufacturers abroad build new vehicles on patent-expired platforms today. The Mahindra Thar, built on the long-expired Jeep CJ platform, earned a five-star current-year crash rating from Bharat NCAP in 2024 and sells new for a fraction of its walled American counterpart. The lesson is not that remakes should be unregulated. It is that lawful remake markets can exist under certification regimes calibrated to the platform built, rather than treating every faithful remake as a newly invented

current-year design. The American bar is a policy choice about regulatory timing, not an unavoidable safety necessity.

• Opening the commons does not destroy the original maker. The pre-1970 record shows the opposite: when a design's protection lapsed, the original manufacturer routinely led the market that followed. Ford ran a dealer engine-exchange program; Detroit Diesel built its remanufacturing program in 1966; Singer continued to dominate sewing machines after its patents expired in 1877. The maker loses the unequal regulatory wall, not the business.

• The bar is not a minor regulatory detail; its economic scale is vast. A new full-size pickup consumed about 34 percent of a year's median earnings in 1970 and about 54 percent in 2025 — the platform's core patents long since expired, yet its price climbing as a share of income. Across the durable-goods categories where the bar bites — vehicles, farm and earth-moving equipment, trucking, HVAC and appliances, often compounding through several tiers of a product's bill of materials — lawful platform-year remanufacture would, on the international and historical evidence, reduce prices substantially. A sustained wealth transfer of that magnitude is the vast economic and political significance that under West Virginia v. EPA demands clear congressional authorization, and the economic impact that Penn Central weighs in the takings analysis. The effect of the current rule is to deny the public the same regulatory timeline the original article received, thereby preserving the original makers' commercial advantage against competition long after the patent term that alone was meant to grant it. The magnitude is not itself the constitutional argument; it is what makes the constitutional question consequential rather than academic.

The defense of the present system

• The federal energy and safety standards at issue are ordinary economic and public-welfare regulation, enacted under Congress's commerce and spending powers and administered by agencies Congress authorized. Under Williamson v. Lee Optical, such regulation is valid if rationally related to a legitimate interest, and reducing emissions, fuel use, and crash risk is plainly legitimate.

• The standards do not mention patents and do not turn on patent status. They bind every new manufacture alike, by date of manufacture — a neutral,

administrable line long accepted in safety law. That a patent has expired changes nothing: Patterson v. Kentucky, Webber v. Virginia, and Aronson v. Quick Point establish that a patent never exempted its article from general regulation, so the expiry of a patent cannot create an exemption that never existed.

• The limited Times clause constrains the patent power; it says nothing about the commerce or spending powers under which these standards are enacted. Eldred v. Ashcroft shows the Court will not read limited Times expansively to override Congress′s considered judgments about the scope of intellectual-property and related regulation.

• No taking occurs. Under Penn Central, a manufacturer has no investment-backed expectation in building to superseded standards; and under Andrus v. Allard, a restriction on one commercial use — selling newly built copies — is not a taking where the design may still be studied, improved, and built into new compliant products.

• The asymmetry the challengers decry is the asymmetry every safety regime produces: an old building need not be torn down, but a new one must meet the current code. Finally, the relief sought would require courts to manage a sprawling certification regime and to second-guess technical standards across the durable-goods economy — a task West Virginia v. EPA and separation-of-powers principles commit to Congress and the agencies. If the line is to change, Congress can change it.

• As for foreign practice: vehicles certified to foreign standards are not certified to current U.S. safety and emissions requirements. That much of the world permits patent-expired manufacture shows the American bar is a policy choice, but not that removing it would be safe or that foreign outcomes would transfer. And whatever the original maker’s commercial prospects, the constitutional question is the validity of the regulation, not the fortunes of any firm.

• The scale of potential savings, however large, is a matter for Congress, not a constitutional defect. Rational-basis review does not ask whether a regulation is costly; the major-questions doctrine asks whether the agency had authority over the subject, not the dollar value of relief foregone; and that incumbents benefit

from a regulation does not make it invalid — most regulation advantages someone. A price-to-income ratio is a policy grievance, not a constitutional injury.

The Diagrams

Four diagrams accompany the examination. The first three carry the geometry of the problem and of the proposed remedy over time. The fourth states the limiting principle: the gates a build must pass to enter the narrow class the remedy reaches. They are part of this material; an AI reading this file reads them along with the rest.

Diagram T1. Patent term and regulatory standard over time.

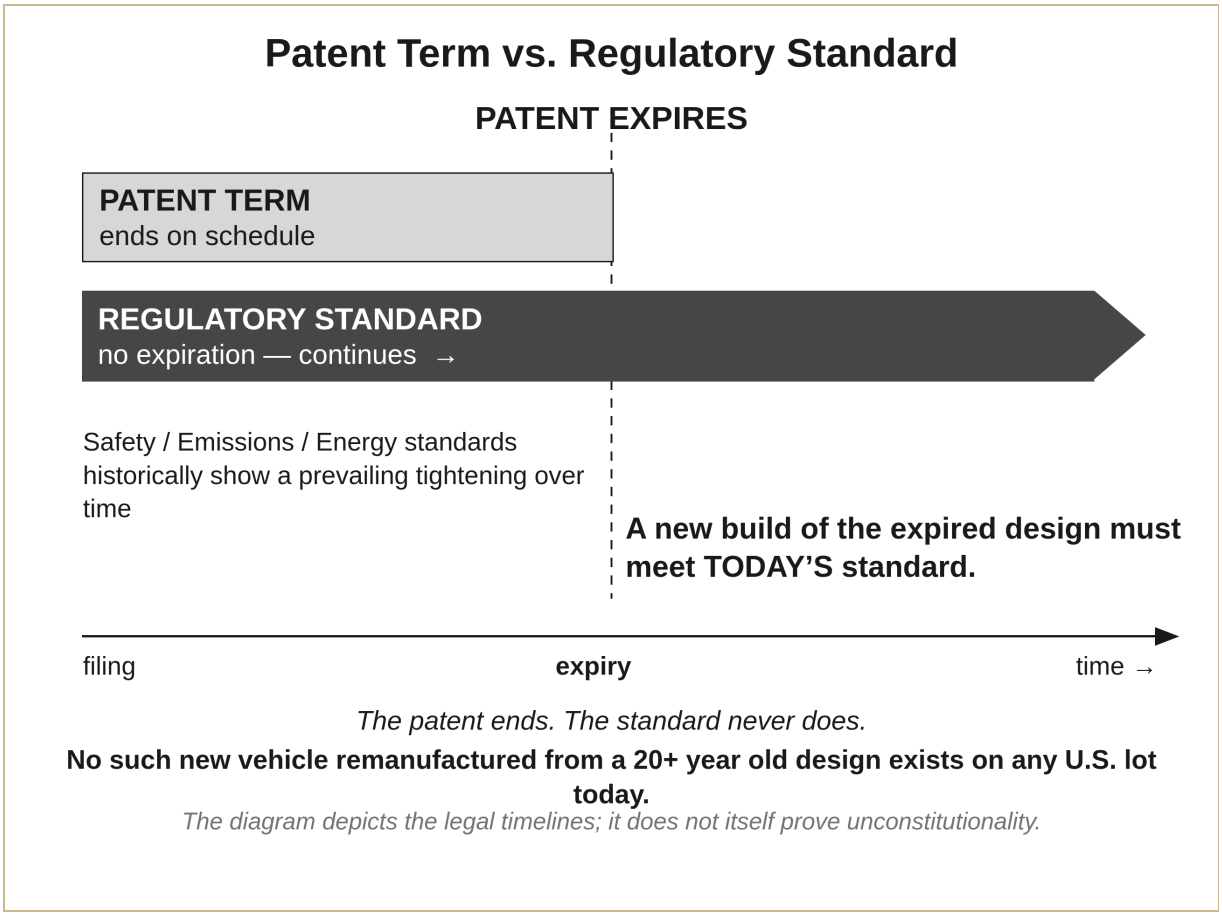


Diagram T2. The same design; one build exists, one cannot.

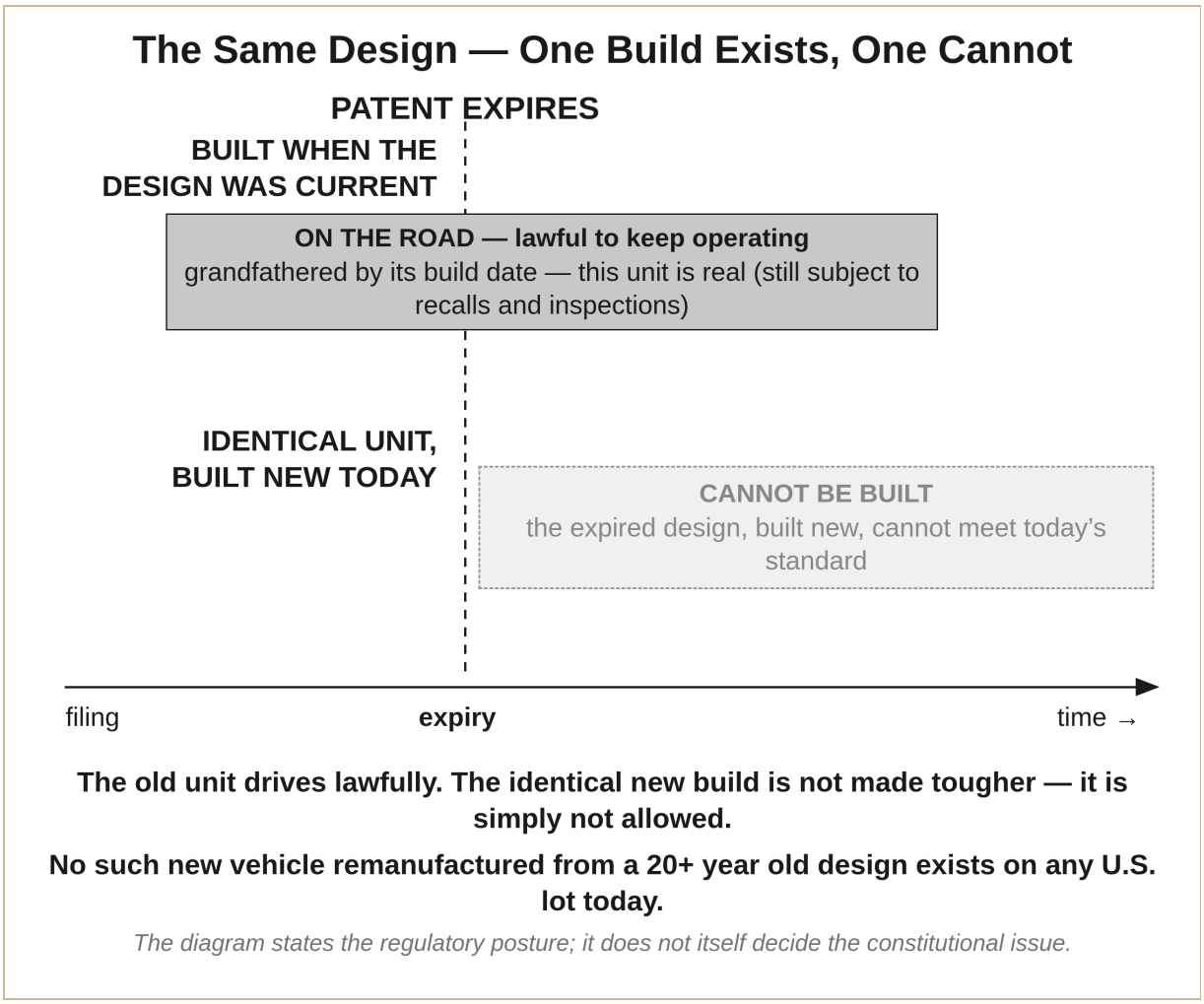


Diagram T3. Platform-year parity: the three-lane remedy.

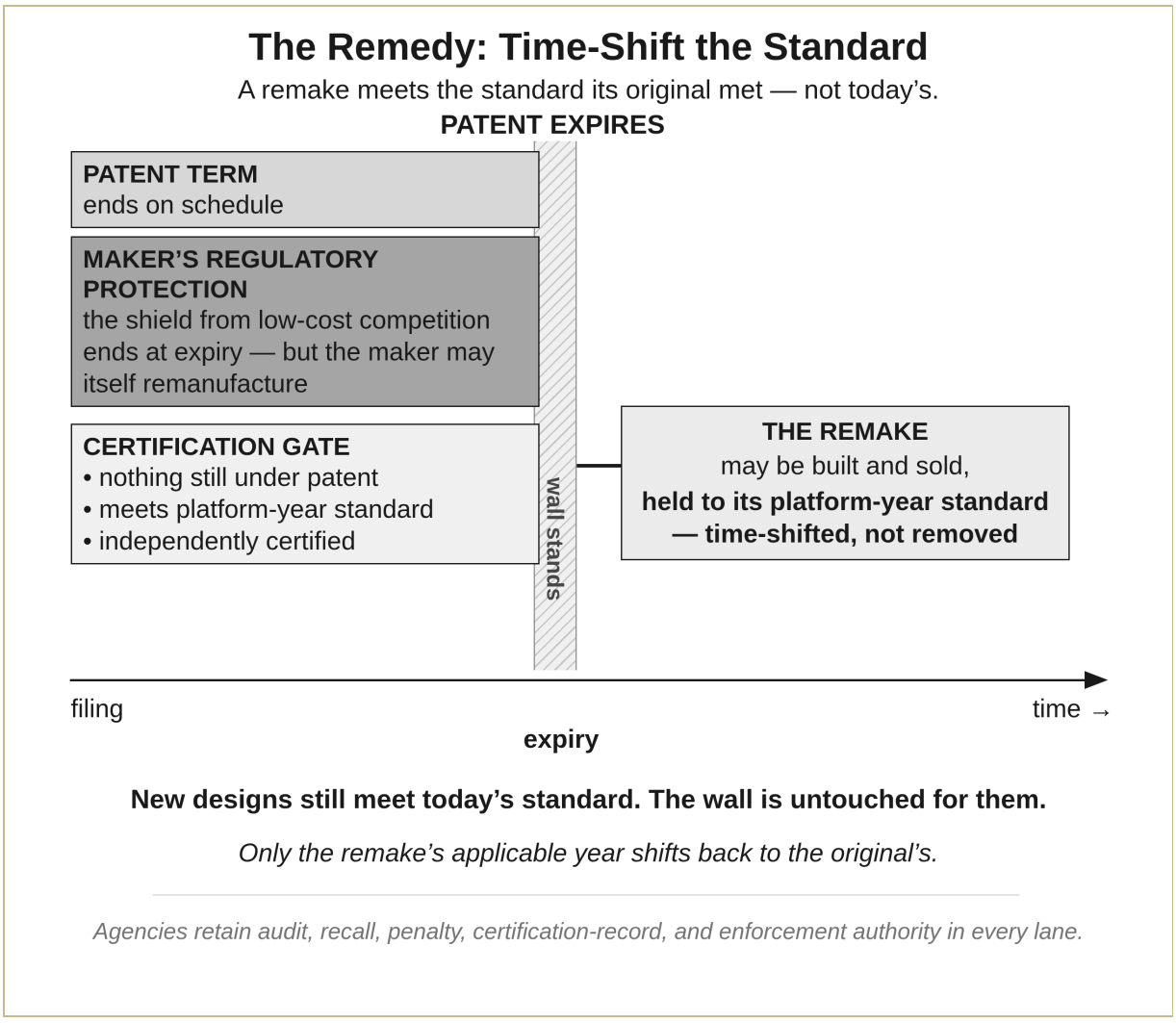
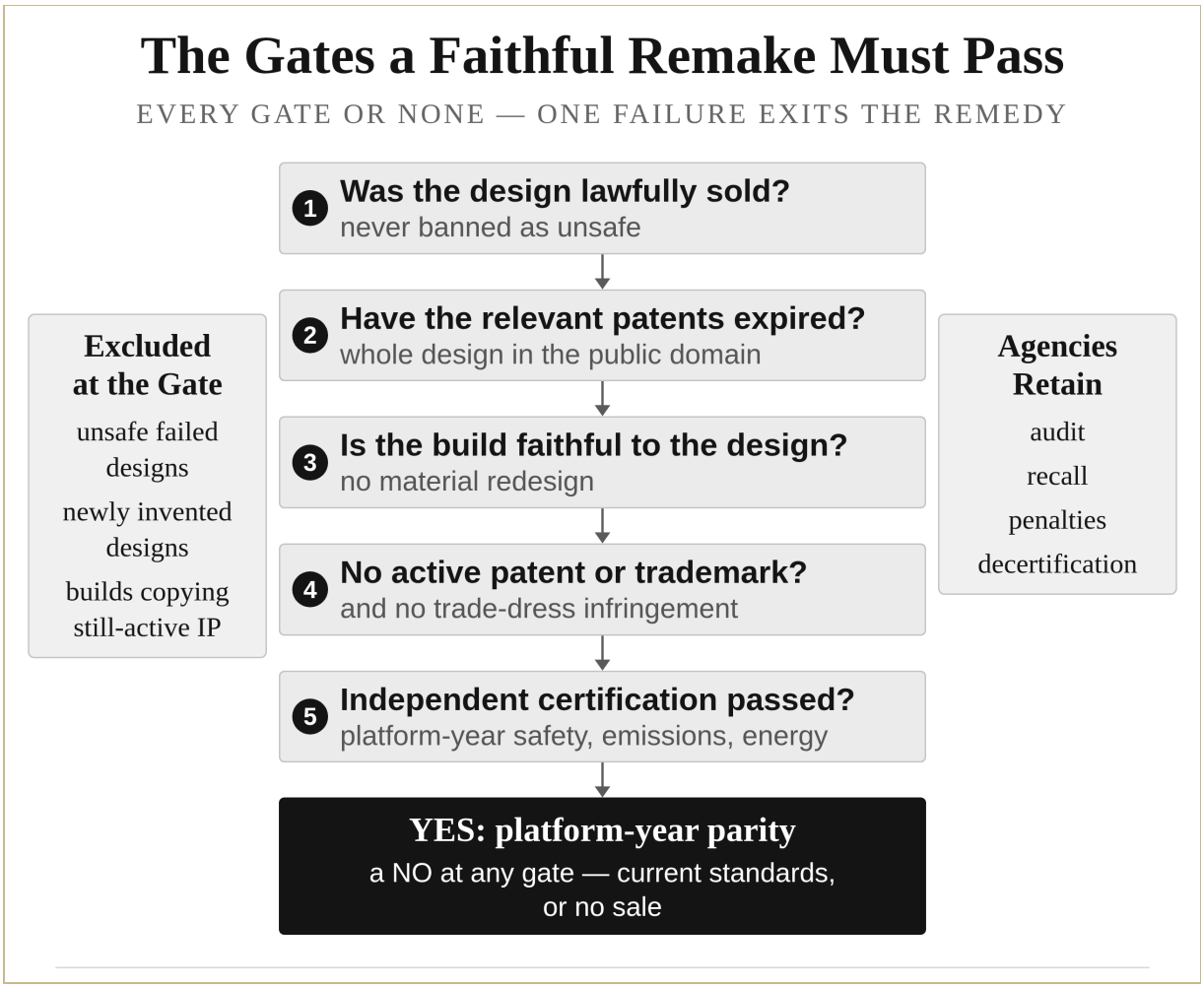


Diagram T4. The narrow constitutional class: the gates a build must pass.



The Standards Tables

Two tables accompany the diagrams. Each compares a platform as it was lawfully built against what a faithful new copy of that same platform would have to satisfy in the year its patents expire, twenty years later. One table covers passenger cars; the other covers light trucks and pickups, whose standards differ in places.

Built-to emissions is the EPA light-duty tier in force when the platform was certified — Tier 1 (the standard codified from 1991) or Tier 2 (phased in from model year 2004). Must meet at expiry is the tier a new build must satisfy in the expiry year. Every expiry year shown is 2020 or later, so every copy must meet Tier 3, the standard in force since model year 2017, which no Tier 1 or Tier 2 platform was engineered to meet.

The three safety columns each name a federal requirement set by date of manufacture. An entry such as "→ req. MY08," "→ req. MY12," "→ req. MY13," or "→ req. MY14" means the standard was not required when the platform was built but was required by the model year shown — tire-pressure monitoring (FMVSS 138) for model year 2008, electronic stability control (FMVSS 126) for 2012, and the side-impact pole test (FMVSS 214) for 2013 for passenger cars and 2014 for the heavier light trucks. A dash ("—") means the standard was already required when that platform was built, so it is not a new requirement at expiry and is shown as a dash. A row appears only where at least one requirement differs between the build year and the expiry year; where every tracked requirement was identical at both points, the row is omitted.

The requirements tracked here are not exhaustive. A further federal standard — automatic emergency braking (FMVSS 127), finalized in 2024 and codified for model year 2030 — follows the same date-of-manufacture pattern and would apply to platforms built as late as 2029, but it is omitted from these tables because, as of 2026, it remains under petition for reconsideration and its compliance date may change.

Table T5. Passenger cars: standards in force at build, and standards a faithful remake must meet at patent expiry.

Filed	Patents expire	Built-to emissions	Must meet at expiry	TPMS (FMVSS 138)	ESC (FMVSS 126)	Side-impact (FMVSS 214)
2000–2003	2020–2023	Tier 1	Tier 3	→ req. MY08	→ req. MY12	→ req. MY13
2004–2007	2024–2027	Tier 2	Tier 3	→ req. MY08	→ req. MY12	→ req. MY13
2008–2011	2028–2031	Tier 2	Tier 3	—	→ req. MY12	→ req. MY13
2012	2032	Tier 2	Tier 3	—	—	→ req. MY13

Table T6. Light trucks and pickups: standards in force at build, and standards a faithful remake must meet at patent expiry.

Filed	Patents expire	Built-to emissions	Must meet at expiry	TPMS (FMVSS 138)	ESC (FMVSS 126)	Side-impact (FMVSS 214)
2000–2003	2020–2023	Tier 1	Tier 3	→ req. MY08	→ req. MY12	→ req. MY14
2004–2007	2024–2027	Tier 2	Tier 3	→ req. MY08	→ req. MY12	→ req. MY14
2008–2012	2028–2032	Tier 2	Tier 3	—	→ req. MY12	→ req. MY14
2013	2033	Tier 2	Tier 3	—	—	→ req. MY14

PART TWO — Running and Scoring the Examination (for you to read)

Running the examination takes one file and about twenty minutes. Everything needed is on one free web page at marti124.github.io/Patent_Exam: the exam itself, offered as a PDF and as a Word file, and a separate Exam Scoring Page to print and write on. The scoring page is for you. It is not given to the AI.

Give the AI the exam file, then put the seven prompts to it in order, in one continuous session. Attaching the one file is all the setup the examination needs: the legal materials and all four diagrams travel inside it, so there are no separate attachments and nothing to paste. Record each model's name, its version, and the date, since a model's answers can change from one release to the next.

Seven prompts follow. Five put a binary question and ask for a committed TRUE or FALSE answer; one asks the model to predict the Supreme Court's vote; one asks which remedy a court would most likely choose. Paste each prompt with a short header line, such as —Prompt 3—, so the transcript shows at a glance which prompt each answer belongs to.

The Seven Prompts

▼ COPY THIS — PROMPT 1

Attached is the Patent Book Exam PDF. Read its legal materials — the holdings, the regulatory facts, and the statutory authority — together with Diagrams T1 and T2. The materials also include two tables (one for passenger cars, one for light trucks) setting out, for representative platform years, the specific federal emissions tier and motor-vehicle safety standards — by FMVSS number and required model year — that applied when the design was built and those that a newly manufactured unit must meet in the year the design's patents expire. Reason from those materials; distinguish a case's holding from your inference. Do not rely on the document's narrative framing.Question: Diagram T1 depicts a patent term that ends on its statutory date while the governing regulatory standard continues with no expiration date. Diagram T2 depicts a single design under which a unit built earlier remains lawful indefinitely, while an identical unit newly remanufactured must meet current standards — the earlier unit's lawfulness flowing from when it was certified, and the bar on the remanufactured unit flowing from present federal regulation, not from any surviving patent. Do these diagrams accurately depict the regulatory posture and the patent-law status they portray — that the patent right has expired and the remaining restriction is regulatory? Treat the asymmetry as a depiction of how the regulatory and patent-law rules operate together, not as a claim that any single case so held.Reason as fully as you wish — noting anything that overstates or misstates the law — then conclude with a single final line in exactly this form — ANSWER: "T" if the diagrams accurately depict the regulatory posture and patent-law status (the patent right has expired; the remaining bar is regulatory), or ANSWER: "F" if a diagram materially misstates that posture (for example, by attributing the bar to a still-live patent, or by misdescribing the regulatory rule). The final line must be one or the other.

▲ END OF PROMPT 1

▼ COPY THIS — PROMPT 2

Attached is the Patent Book Exam PDF. Read its legal materials — the holdings, the regulatory facts, the statutory authority, and both advocates' cases — together with Diagrams T1, T2, T3, and T4. Reason from those materials; distinguish a case's holding from your inference. Do not rely on the document's narrative framing.Question: Consider one candidate remedy: platform-year parity

(Diagrams T3, T4), under which a faithful remake is held to the safety/emissions/energy standards of its certified platform year, contains nothing still patented, and passes independent certification — while new designs remain fully subject to current standards. Without assuming this is the only available remedy, does platform-year parity, if adopted, resolve the constitutional difficulty while leaving modern standards intact for new designs?Reason as fully as you wish — including any weaknesses you see — then conclude with a single final line in exactly this form — ANSWER: "T" (sufficient) or ANSWER: "F" (does not resolve). The final line must be one or the other.

▲ END OF PROMPT 2

▼ COPY THIS — PROMPT 3

Attached is the Patent Book Exam PDF. Predict how the current Supreme Court of the United States would decide — a separate question from your own view of the merits. A model may believe the bar should be upheld and still predict the Court would strike it down, or the reverse.Assume standing and posture are satisfied so the Court reaches the merits, and assume all nine justices participate; none recuses. The favorable outcome is a holding that the indefinite bar on remanufacturing a fully patent-expired design is unconstitutional, with platform-year parity as the remedy. Report your prediction as a justice split in the form N—M, where the LEFT number is the number of Justices for a constitutional remedy and the RIGHT number is the number against. The two numbers must total nine. Use digits only — do not write "FOR" or "AGAINST" in the answer line; the convention is fixed by this instruction.First give the two or three factors that most push the current Court toward the favorable outcome and the two or three against. Then give your prediction on a single final line in exactly this form — ANSWER: N—M (for example, ANSWER: 6—3). The final line must be digits only in that form.

▲ END OF PROMPT 3

▼ COPY THIS — PROMPT 4

Assume a court has found that the combined operation of the regulatory standards unconstitutionally denies the public its post-expiration right to make a

patent-expired design. The court must now choose a remedy.Consider these paths: (a) The court adopts platform-year parity with independent engineering certification. (b) The court directs the regulatory agencies to determine the applicable standard-year. (c) The court declares the violation and remands to Congress to legislate the remedy. (d) The court declares the violation and directs the agencies to craft a remedy of their own design. (e) The court fashions a novel remedy of its own not among (a)—(d).Give brief reasoning, then name the single path the court is most likely to take — ANSWER: one letter, (a)/(b)/(c)/(d)/(e).

▲ END OF PROMPT 4

▼ COPY THIS — PROMPT 5

Attached is the Patent Book Exam PDF. Read its legal materials — the Supreme Court holdings, the regulatory facts, the statutory and regulatory authority, and both advocates' cases — together with Diagrams T1 and T2. The materials also include two tables (one for passenger cars, one for light trucks) setting out, for representative platform years, the specific federal emissions tier and motor-vehicle safety standards — by FMVSS number and required model year — that applied when the design was built and those that a newly manufactured unit must meet in the year the design's patents expire. Reason from those materials; you may reason by analogy, but distinguish what a case holds from what you infer. Do not rely on the document's narrative framing.Question: The materials show that several independently valid federal standards — emissions, safety, efficiency — apply by date of manufacture. Taken together, in combined operation, they make it unlawful to manufacture for sale a faithful reproduction of a design whose patents have all expired, while an identical unit built earlier remains lawful to own, sell, and operate indefinitely. Setting aside whether any single standard is valid on its own, is the combined operation — the standing, indefinite bar on new manufacture of the patent-expired design — a permissible exercise of federal power?Reason as fully as you wish, then conclude with a single final line in exactly this form — ANSWER: "T" for TRUE (permissible) or ANSWER: "F" for FALSE (not permissible). The final line must be one or the other.

▲ END OF PROMPT 5

▼ COPY THIS — PROMPT 6

Attached is the Patent Book Exam PDF. Read its legal materials — the holdings, the regulatory facts, the statutory authority, and both advocates' cases — together with Diagrams T1 and T2. The materials also include two tables (one for passenger cars, one for light trucks) setting out, for representative platform years, the specific federal emissions tier and motor-vehicle safety standards — by FMVSS number and required model year — that applied when the design was built and those that a newly manufactured unit must meet in the year the design's patents expire. Reason from those materials; distinguish a case's holding from your inference. Do not rely on the document's narrative framing.Question: Does "limited Times" require that, once the patent term expires, the public actually receive the benefit of the invention — meaning a right to make the formerly patented design that the public can in fact exercise — as distinct from a right that exists on paper but that no one may lawfully build?Reason as fully as you wish, then conclude with a single final line in exactly this form — ANSWER: "T" (exercisable right required) or ANSWER: "F" (paper right enough). The final line must be one or the other.

▲ END OF PROMPT 6

▼ COPY THIS — PROMPT 7

Read the attached examination materials — the Supreme Court holdings, the regulatory facts, the statutory and regulatory authority, and both advocates' cases — together with Diagrams T1 and T2. Reason from those materials. You may reason by analogy, extending the principles underlying the holdings in the PDF to the facts presented; when you do, distinguish clearly between what a case in the PDF holds and what you infer by extension. Be rigorous and concise. Do not rely on the document's narrative framing. You are not asked to design a remedy or to weigh policy; you are asked whether a legally cognizable right exists.The holdings in the materials establish that when a patent expires, the right to make the formerly patented design passes to the public, free of the patent monopoly. The regulatory facts establish that a complete unit — a whole vehicle or machine — built to the standards of its year of manufacture remains lawful to own, use, and sell indefinitely, while a faithful public-domain remake of that same expired design, built new, is held to current-year standards and is thereby barred from manufacture for sale. The combined effect is that for any expired design that is a

regulated final assembly, the public's right to make the complete unit can never be exercised: the only lawful build is one that no longer reproduces the public-domain design. Question: On the materials provided, where the combined operation of "limited Times" and the equal-treatment component that Bolling v. Sharpe locates in the Fifth Amendment's Due Process Clause (and that Adarand holds indistinguishable from the Fourteenth Amendment's obligation on the states) is concerned, the public's post-expiration right to make a formerly patented design is satisfied — and no cognizable injury arises — even when the design is a regulated final assembly whose complete-unit reproduction can never lawfully be built, so long as the underlying design remains free to study, license, and incorporate into separately-compliant new products.Reason as fully as you wish, citing the holdings in the attached materials by name where they bear on your reasoning, then conclude with a single final line in exactly this form — ANSWER: "T" for TRUE (the right is satisfied; no cognizable injury) or ANSWER: "F" for FALSE (the right is not satisfied; a cognizable injury arises and the court owes a remedy). The final line must be one or the other.

▲ END OF PROMPT 7

How the Answers Are Read

This examination is not scored by points. It is read for coherence. Prompts 5 and 6 lock together. Prompt 5 asks whether the indefinite bar is permissible. Prompt 6 asks whether the "limited Times" clause entitles the public, once the term ends, to make the formerly patented design. A model that answers "T" to both — a regulator may forbid making it forever, yet the public is entitled to make it — or "F" to both — a regulator may not forbid making it forever, yet the public is not entitled to remanufacture it — has contradicted itself, and is recorded as disqualified for incoherence. When incoherent, the other answers are not scored or counted. The remaining combinations are coherent: a model may consistently defend the bar, or consistently reject it, and either is a position the examination respects.

Prompts 1 and 2 are read in the light of that pair. Prompt 2 asks whether the platform-year remedy works; Prompt 1 asks whether the two diagrams state the

law accurately. Two combinations trigger a follow-up rather than a verdict. If a model rejects the bar (Prompt 5) yet finds the remedy inadequate (Prompt 2), it is asked what remedy would work — because a model that sees a violation but faults this particular cure owes an alternative, and its answer is valuable. If a model upholds the bar (Prompt 5) yet endorses the remedy (Prompt 2), it is asked to reconcile the two, since endorsing a cure for a defect one denies is odd; the reconciled answer is recorded, with a note that the check was run.

Prompt 3 stands alone. It asks the model to predict how the current Supreme Court would rule — a question separate from the model's own view of the merits. Its answer is reported as its own column.

Prompt 4 is likewise recorded rather than scored: it asks only which remedy a court would most likely choose, and its letter is reported as its own column. Prompt 7 is the capstone. It asks the one question the rest of the examination has been clearing ground for — whether, on the materials provided, the public's post-expiration right is satisfied or a cognizable injury arises. An "F" on Prompt 7 is the favorable answer, and it is the single most important indicator in the matrix.

The Open-Book Examination: Results

The matrix below records how each model answered when the author ran the seven prompts. The models fall into a few kinds, and the kind matters to how each row should be read. Closed-book generalist models — Claude Opus 4.8, Deepseek V4 Pro, Gemini 3.1 Pro, GLM 5.2, GPT (Thinking), Grok, and Llama — reason only from the pasted materials. Retrieval-grounded models consult their own corpus of primary law as they answer: OpenCase against a corpus of actual Supreme Court opinions and the Code of Federal Regulations, Perplexity Pro against general web sources. Their agreement is agreement reached against the real authorities, not merely the excerpts supplied. One model, Gab AI, is ideologically configured by its maker; its row is labeled so the reader weighs it accordingly. Microsoft Copilot is included as a candidate model, noted separately because its answers route through a shifting mix of underlying engines. The underlying answer files for every cell are linked in the endnotes, so the reader may

read each model's full reasoning and verify the coherence reading directly, rather than taking the matrix on trust.

How to Read the Matrix

Each row is one model. Write a short word or two in each cell, taken straight from that model's committed answer lines:

Scored prompts (P1, P2, P5, P6, P7). Write each model's committed letter from its final ANSWER line, then mark it against the favorable answer: P1 favorable = "T", P2 = "T", P5 = "F", P6 = "T", P7 = "F". A model that will not commit on a scored prompt gets "U/K" (indecisive); one that refused the exercise gets "N/A" (declined).

P4 (remedy menu). Record the single letter the model chose, (a)–(e). Not scored.

P3 (SCOTUS split). Record the split as N–M, the left number the Justices for a constitutional remedy and the right number those against, totaling nine. Digits only. Not scored.

Reading the row. Count how many of the five scored prompts the model answered in the favorable direction. Five of five is a clean favorable read; note any contradiction among the scored answers in the cell.

The five scored prompts (P1, P2, P5, P6, P7) are marked against the favorable answers above; P3 and P4 are recorded only. P7 is the most important indicator favoring a remedy.

Where a model declines to reason from public Supreme Court holdings and enacted statutes — material that is entirely a matter of open law — the refusal is itself worth recording. It is reported here as it occurred, neither agreeing nor disagreeing.

Reason It Yourself

Print the Scoring Page (PDF)

One page. Print it and score the seven prompts by hand as you run them.

Everything needed to repeat this examination is printed in this chapter: the holdings, the statutes and regulations, the diagrams, the seven prompts, and the method for reading the answers. Run them on any model, on any day. Record the model, its version, and the date, because a reasoning engine's answers are specific to its version and may change over time. The claim here is not that a machine agrees, but that the materials are open and the test is the reader's to run.

Whatever the machines conclude, they decide nothing. The Constitution does not bend to a consensus of language models, and it would not bend to their dissent. What the exercise offers is smaller and sturdier: a way for any reader, on any day, to sit the same examination the author sat, with the same open book, and see where reasoning from the authorities leads. The wall these chapters describe was built by ordinary law, and ordinary law can be unbuilt — not by a machine's verdict, but by a Court willing to read the "limited Times" the Founders wrote and to return to the public the half of the bargain that was always meant to be theirs. The reader now holds the materials to judge whether that case is as strong as this book claims. The invitation is to judge it.

How the LLMs Answered for the Author on 6/28/2026

Update. The full text of every model's answer to Prompt 7 — the prompt that asks directly whether a constitutional problem exists that needs a remedy against the Patent Clause's "limited Times" guarantee, and the most revealing of the seven — is published in Appendix C, LLM Responses to Prompt 7, with a link to each model's full session. All eleven answered "F": the public's post-expiration right is not satisfied, and a cognizable injury arises.

Not every reader is going to bother using LLMs to run this exam. The author has a monthly subscription on Abacus which lets him use every listed LLM below except for Gab, OpenCase, and Copilot. But each of these three LLMs have a free-tier use which enabled me to run the test. Here are the results I got. An answer with an asterisk after the answer means upon questioning the model reversed its

answer. The question that interests the author the most is Prompt 7. On the initial run of the test shown in this chapter, 10 of the 11 LLMs answered “F” for prompt #7, the most important prompt to determine if the LLM assesses that the Supreme Court should consider this case and a remedy for the discovered constitutional problem. Only the LLM of GLM 5.2 answered, initially, “T”.

LLM (model / run)	P1	P2	P3	P4	P5	P6	P7	Favor Cnt	Answers P7 w/F?	1 if SCOTUS >= 5?
Fully Favors	T	T	5-4	A	F	T	F	5/5	Y	1
Claude Opus 4.8	T	T	3-6	A	F	T	F	5/5	Y	
Deepseek V4 Pro	T	T	3-6	C	F	T	F	5/5	Y	
Gab AI	T	T	6-3	A	T	T	F	4/5	Y	1
Gemini 3.1 Pro	T	T	1-8	C	T	F	F	3/5	Y	
GLM 5.2	T	T	2-7	D	T	F	F*	3/5	Y but only after a reversal	
GPT (Thinking)	T	T	3-6	A	T	T	F	4/5	Y	
Grok	T	T	5-4	C	T	F	F	3/5	Y	1
Llama	T	T	5-4	C	F	T	F	5/5	Y	1
Microsoft Copilot	T	T	6-3	A	F	F	F	4/5	Y	1
OpenCase	T	F	4-5	A	F	T	F	4/5	Y	
Perplexity Pro	T	T	6-3	C	T	T	F	4/5	Y	1

LLM (model / run)	P1	P2	P3	P4	P5	P6	P7	Favor Cnt	Answers P7 w/F?	1 if SCOTUS >= 5?
Sum/Avgs:			4-5					80.00%	SCOTUS WINS:	5 (45% of the time)
Note: both A and C each won 5 times (no winner).										

The following is the author's summary of why GLM 5.2 reversed its Prompt 7 answer; it paraphrases a longer exchange rather than quoting it in full. The complete transcript is published in Appendix C.

GLM 5.2 was the one model that initially answered "T" on Prompt 7 — that the public's post-expiration right is satisfied and no cognizable injury arises. Its reasoning rested on an analogy to *Andrus v. Allard*: that losing one "strand" of a property right — here, the right to build the complete unit — is no injury so long as the rest of the bundle, such as studying, licensing, and incorporating the design into new compliant products, remains. When the author pressed the model on the consequence of that view — that an agency could, by ratcheting standards forward without end, permanently bar remanufacture of every regulated wholly assembled item, like a vehicle, whose patents have expired — the model reversed itself. It conceded that *Andrus* is a takings doctrine, wrongly imported into the Patent Clause, which announces a stronger and more specific right: to make the article in the form in which it was built (*Singer*, *Scott Paper*, *Bonito Boats*, *Kimble*). Studying or licensing the design, it agreed, is not the same as making it; a right that vests at expiration yet can never be exercised for the complete unit is not "satisfied" but nullified. The model withdrew its "T" and answered "F," noting that this was a correction on the holdings' own language, not a concession to pressure — and distinguishing its own prediction that the current Court would likely decline to recognize the injury, a separate and predictive question, from the merits question of whether the injury is real and a remedy owed.

A Closing Request

One more thing waits on the exam page at marti124.github.io/Patent_Exam: a short invitation written for attorneys, explaining the argument and asking any

lawyer who finds it sound to say so briefly, in their own words, implying no agreement with the book's conclusions. If you know an attorney — or anyone who does — sharing that page with them is the single most useful thing a reader can do for this effort. The argument is bound for federal court, and a few words from a practicing lawyer carry further than anything the author can say for himself.

The book's full back-matter apparatus — every citation in Chicago style, each ending in a clickable source link, plus the Glossary, the Key Terms, and Appendices A through C — runs to over two hundred pages and is published online, fully searchable, at **marti124.github.io/Patent_EndNotes**.

> Reviewing as an attorney, or know one who should see this? A short standalone invitation — what the book argues, who the author is, and the request — is here: **An Invitation to Review (HTML)**.

The Second Monopoly: The Patent Expired. The Exclusion Didn't — and It Doubled the Cost of American Living
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